

Section 150 of the [Fisheries Management Act 1991](#) defines SFRARP's powers of review to:

- Affirm the decision that is under review - meaning the original decision remains unchanged.
- Vary the decision - meaning that part of the decision applied to be reviewed has been changed.
- Set the decision aside and substitute a new decision. This means SFRARP agrees or partially agrees that the decision applied to be reviewed was incorrect and therefore has been changed.

If SFRARP varies or sets aside a decision and substitutes a new one, this result is deemed to be a decision of the Australian Fisheries Management Authority or the Joint Authority.

The decision takes effect when the applicant is notified of the decision under subsection 160(2) of the Fisheries Management Act 1991.

Procedural Guidelines

For accessibility purposes the following content is offered in two formats.

More information about the operation and procedure of SFRARP is located in:

- [Procedural Guidelines for the SFRARP PDF](#)  [212 KB, 33 pages]
[Procedural Guidelines for the SFRARP DOC](#)  [186 KB, 33 pages]
- [Appendix A - Form 2 PDF](#)  [28 KB, 2 pages]
[Appendix A - Form 2 DOC](#)  [30 KB, 2 pages]
- [Appendix A1 - Note Information For Applicants PDF](#)  [30 KB, 1 page]
[Appendix A1 - Note Information For Applicants DOC](#)  [32 KB, 1 page]
- [Appendix B - Form 3 PDF](#)  [26 KB, 1 page]
[Appendix B - Form 3 DOC](#)  [30 KB, 1 page]
- [Appendix C - Form 8 PDF](#)  [28 KB, 2 pages]
[Appendix C - Form 8 DOC](#)  [26 KB, 2 pages]
- [Appendix D - Form 7 PDF](#)  [29 KB, 2 pages]
[Appendix D - Form 7 DOC](#)  [27 KB, 2 pages]
- [Appendix E - Form 4 PDF](#)  [28 KB, 1 page]
[Appendix E - Form 4 DOC](#)  [29 KB, 1 page]
- [Appendix F - Form 5 PDF](#)  [30 KB, 1 page]
[Appendix F - Form 5 DOC](#)  [31 KB, 1 page]

Reviews of Decisions

A person must lodge an Application for Review of Decision to Grant a Fishing Right relating to the allocation of provisional statutory fishing rights with SFRARP within 14 days of being notified of the decision by the Australian Fisheries Management Authority or Joint Authority decision.

SFRARP must then, through the Registry, and as soon as practicable, notify in writing:

- The Australian Fisheries Management Authority or the Joint Authority, whichever made the decision;
- Anyone registered under section 26 of [Fisheries Management Act 1991](#) who received the same type of provisional allocations and may be affected by a review of the decision. Any person who receives a written notification is automatically a party to the proceedings.

The Australian Fisheries Management Authority or the Joint Authority must, within 14 days of being notified of an application to review the decision, provide SFRARP with a copy of:

- the reasons for the decision
- any documents relevant to the review of the decision, and
- if required, any other documents relating to the general state of the fishery and the decision under review.

SFRARP will then write to all parties concerned to inform them of the date, time and place of any hearing. Some or all of the matter may be considered based on written submissions.

Under subsection 160(2) of the [Fisheries Management Act 1991](#) parties may appeal to the Federal Court on points of law against SFRARP's decision within 28 days of being notified of the decision.

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